

Limitation :

Right to apply for compensation accrued to the claimant within the meaning of Art. 137 of 1963 Act on the date when open delivery was granted. In the present case, open delivery having been granted on 11th April, 1980, the claim application filed before the Tribunal on 18th May, 1963 was well within the statutory period of three years and two months as two months time is granted for service of statutory notice.

94. Goods to be loaded or delivered at a siding not belonging to a railway administration.- (1) Where goods are required to be loaded at a siding not belonging to a railway administration for carriage by railway the railway administration shall not be responsible for any loss, destruction, damage or deterioration of such goods from whatever cause arising until the wagon containing the goods has been placed at the specified point of interchange of wagons between the siding and the railway administration and railway servant authorized in this behalf has been informed in writing accordingly by the owner of the siding.

(2) Where any consignment is required to be delivered by a railway administration at a siding not belonging to a railway administration, the railway administration shall not be responsible for any loss, destruction, damage or deterioration or non-delivery of such consignment from whatever cause arising after the wagon containing the consignment has been placed at the specified point of interchange of wagons between the railway and the siding and the owner of the siding has been informed in writing accordingly by a railway servant authorized in this behalf.

Comment

Section 94 lays down the responsibility of the railway administration in case of the goods are loaded or delivered at a siding not belonging to railway administration.

95. Delay or retention in transit. – A railway administration shall not be responsible for the loss, destruction, damage or deterioration of a consignment proved by the owner to have been caused by the delay or detention in their carriage if the railway administration proves that the delay or detention arose for reasons beyond its control or without negligence or misconduct on its part or on the part of any of its servants.

Comments

Section 95 lays down that a railway administration shall not be liable for any loss, destruction, etc. for delay or detention in transit for the reasons beyond the control of railway administration or without negligence on its part.